

The Spices Board Act, 1986

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Union of India - Act

The Spices Board Act, 1986

UNION OF INDIA

India

The Spices Board Act, 1986

Act 10 of 1986

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The Spices Board Act, 1986

Act

No. 10 of 1986

An act to provide for the constitution of a Board for the development of export of spices and for the control of cardamom industry including the control of cultivation of cardamom and matters connected therewith.

Be it enacted by parliament in the Thirty-seventh Year of the Republic of India as follows:

Chapter - I Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Spices Board Act, 1986

(2)

It extends to the whole of India

(3)

[It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.]

[The Spices Board Act 1986 came into force from 26th February 1987 vide Government of India, Ministry of Commerce, Notification No. 122 (E) dated 26th February 1987.]

2.

Definitions.

- In this Act, unless the context otherwise requires;

(a)

"Board" means the Spices Board constituted under sub-section (1) of section 3;

(b)

"cardamom" means the fruit of cardamom plant and includes green cardamom, bleached cardamom, bleachable white cardamom, sun-dried cardamom, cardamom seeds, powdered cardamom and oil extracted from cardamom;

(c)

"cardamom plant" means *Elettaria cardamom maton*, *amomum subulatum* Roxb and any other plant which the Board may, by notification in the official Gazette, declare to be a cardamom plant for the purposes of this Act;

(d)

"certificate" means a certificate granted under section 12;

(e)

"dealer" means a dealer in spices

(f)

"estate" means the area administered as one unit which contains land planted with cardamom plants.

(g)

"export" and "import" mean, respectively, taking out of or bringing into India by land, sea and air;

(h)

"manufacturer" means a manufacturer of spices;

(i)

"member" means a member of the Board appointed under subsection (3) of section 3;

(j)

"owner" in relation to any land planted with cardamom plants, includes -

(i)

any agent of the owner; and

(ii)

a mortgagee, lessee or other person in actual possession of the land;

(k)

"prescribed" means prescribed by rules made under this Act;

(l)

"registered estate" means an estate in respect of which an owner is registered under sub-section (1) of section 8 and includes any estate in respect of which an owner is required to be registered under the provisions of that sub-section;

(m)

"registered owner" means an owner of a registered estate which has been or is registered or is required to be registered under sub-section (1) of section 8; and

(n)

"spices" means the spices specified in the Schedule:

Provided that the Central Government may, if satisfied that it is necessary or expedient in the public interest so to do, by notification in the Official Gazette, add any other spice to the Schedule or omit any spice therefrom.

Chapter - II The Spices Board

3.

Constitution and incorporation of the Board.

(1)

The Central Government shall, by notification in the Official Gazette constitute, for the purposes of this Act, a Board, to be called the Spices Board.

(2)

The Board shall be a body corporate by the name aforesaid having perpetual succession and a common seal with power, subject of the provisions of this Act to contract and shall, by the said name, sue and be sued.

(3)

[The Board shall consist of such number of members, not exceeding thirty-two, as may be prescribed, and unless the rules made in this behalf otherwise provide, the Board shall consist of the following members, namely:-]

[Please see Chapter II of Spices Board Rules, 1987.]

(a)

a Chairman

(b)

three Members of Parliament, of whom two shall be elected by the House of the People and one by the Council of States;

(c)

three members to represent respectively the Ministries of the Central Government dealing with:

(i)

Commerce;

(ii)

Agriculture; and

(iii)

Finance;

(d)

six members to represent the growers of spices;

(e)

eleven members to represent the exporters of spices;

(f)

three members to represent major spice producing States;

(g)

five members, one each to represent:-

(i)

the Directorate of Cocoa, Arecanut and Spices Development, Calicut;

(ii)

the Indian Institute of Packaging, Bombay

(iii)

the Central Food Technological and Research Institute, Mysore

(iv)

the Regional Research Laboratory, Trivandrum; and

(v)

the Central Plantation Crops Research Institute, Kasargode.

(4)

The office of member of the Board shall not disqualify its holder for being chosen as or for being, a member of either House of Parliament.

(5)

The term of office of the members and other conditions of service of the members shall be such as may be prescribed.

(6)

The Chairman shall, in addition to presiding over the meetings of the Board, exercise and discharge such powers and duties of the Board as may be delegated to him by the Board and such other powers and duties as may be prescribed.

(7)

The Board shall elect from among its members a Vice-Chairman who shall exercise such of the powers and perform such of the functions of the Chairman as may be prescribed or as may be delegated to him by the Chairman.

(8)

No act or proceeding of the Board shall be invalidated merely by reason of:-

(a)

any vacancy in, or any defect in the constitution of the Board;

(b)

any defect in the appointment of a person acting as a member of the Board;

(c)

any irregularity in the procedure of the Board not affecting the merits of the case.

4.

Secretary and other officers.

(1)

The Board may appoint the Secretary and such other officers and employees as it considers necessary for the efficient discharge of its functions under this Act.

(2)

The terms and conditions of service of the Secretary and other officers and employees of the Board shall be such as may be determined by Regulations.

5.

Advisory Committees.

(1)

Subject to any rule made in this behalf, the Board may, from time to time, constitute such committees as may be necessary for the efficient discharge of its functions.

(2)

Every committee constituted under sub-section (1) shall consist of such number of persons as the Board may deem fit.

6.

Transfer of assets and liabilities of the Cardamom Board and the Spices Export Promotion Council to the Board.

(1)

On and from the commencement of this Act: -

(a)

All properties and other Assets vested in the Cardamom Board and the Spices Export Promotion Council immediately before such commencement shall vest in the Board;

(b)

all debts, obligations and liabilities incurred, all contracts entered into and all matters and things engaged to be done by, with, or for the Cardamom Board or the Spices Export Promotion Council immediately before such commencement for or in connection with the purposes of the Cardamom Board or the Spices Export Promotion Council shall be deemed to have been incurred, entered into and engaged to be done by, with or for the Board;

(c)

all sums of money due to the Cardamom Board or the Spices Export Promotion Council immediately before such commencement shall be deemed to be due to the Board;

(d)

all suits and other legal proceedings instituted or which could have been instituted by or against the Cardamom Board or the Spices Export Promotion Council immediately before such commencement may be continued or instituted by or against the Board; and

(e)

every employee holding any office under the Cardamom Board or the Spices Export Promotion Council immediately before such commencement shall on such commencement hold his office or service under the Board with the same rights and privileges as to pension, gratuity and other matters as would have been admissible to him if there had been no such vesting and shall continue to do so unless and until his employment under the Board is duly terminated or until his remuneration and other conditions of service are duly altered by the Board.

(2)

Notwithstanding anything contained in the Industrial Disputes Act, 1947 or in any other law for the time being in force, the absorption of any employee by the Board in its regular service under this section shall not entitle such employee to

any compensation under that Act or other law and no such claim shall be entertained by any court, tribunal or other authority.

7.

Functions of the Board.

(1)

The Board may:-

(i)

develop, promote and regulate export of spices;

(ii)

grant certificate for export of spices and register brokers therefore;

(iii)

undertake programmes and projects for promotion of export of spices;

(iv)

assist and encourage studies and research for improvement of processing, quality, techniques of grading and packaging of spices;

(v)

strive towards stabilisation of prices of spices for export;

(vi)

evolve suitable quality standards and introduce certification of quality through "Quality Marking" for spices for export;

(vii)

control quality of spices for export;

(viii)

give licences, subject to such terms and conditions as may be prescribed, to the manufacturers of spices for export;

(ix)

market any spice, if it considers necessary, in the interest of promotion of export;

(x)

provide warehousing facilities abroad for spices;

(xi)

collect statistics with regard to spices for compilation and publication;

(xii)

import, with the previous approval of the Central Government, any spice for sale, and

(xiii)

advise the Central Government on matters relating to import and export of spices.

(2)

The Board may also:-

(i)

promote co-operative efforts among growers of cardamom;

(ii)

ensure remunerative returns to growers of cardamom;

(iii)

provide financial or other assistance for improved methods of cultivation and processing of cardamom, for replanting cardamom and for extension of cardamom growing areas;

(iv)

regulate the sale of cardamom and stabilisation of prices of cardamom;

(v)

provide training in cardamom testing and fixing grade standards of cardamom;

(vi)

increase the consumption of cardamom and carry on propaganda for that purpose;

(vii)

register and licence brokers (including auctioneers) of cardamom and persons engaged in the business of cardamom;

(viii)

Improve the marketing of cardamom;

(ix)

collect statistics from growers, dealers and such other persons as may be prescribed on any matter relating to the cardamom industry; publish statistics so collected or portions thereof or extracts therefrom;

(x)

secure better working conditions and the provision and improvement of amenities and incentives for workers; and

(xi)

undertake, assist or encourage scientific, technological and economic research.

Chapter - III Registration Of Owners Of Cardamom Estates

8.

Registration of owners of cardamom estates.

(1)

Every owner of land planted with cardamom plants, whether such land is comprised in one estate or more than one estate, shall, before the expiration of one month from the date on which he first became owner of such estate or estates, apply to the registering officer appointed in this behalf by the State Government to be registered as an owner in respect of each estate owned by him;

Provided that the State Government may, for sufficient reasons, extend the time-limit for registration by such period as it thinks fit.

(2)

Registration once made shall continue to be in force until it is cancelled by the registering officer.

9.

Power of State Government to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules to carry into effect the provisions of section 8.

(2)

Without prejudice to the generality of the foregoing power, such rules may prescribe the form of the application for registration and for cancellation of registration, the fee payable on such applications, the particulars to be included in such application the procedure to be followed in granting and cancelling registration, the registers to be kept by registering officers and the supply by registering officers of information to the Board.

10.

Returns to be made by registered owners.

(1)

A registered owner shall furnish returns to the Board in such form, at such times and in such manner as may be prescribed.

(2)

The Board may authorise an officer to visit any estate at any time to verify the accuracy of any return made under this section or to ascertain the productive capacity of the estate.

Chapter - IV Certificate For Export Of Spices

11.

No person to export spices without certificate.

- Save as otherwise provided in this Act, no person shall, after the commencement of this Act, commence or carry on the business of export of any spice except under and in accordance with a certificate.

Provided that a person carrying on the business of export of spices immediately before the commencement of this Act, may continue to do so for a period of three months from such commencement; and if he has made an application for such certificate with the said period of three months till the disposal of such application.

Explanation: - The reference in this section to the commencement of this Act shall be construed in relation to any spice added to the Schedule by notification under the proviso to clause (n) of section 2 as reference to the date with effect from which such spice is added to the Schedule.

12.

Grant of certificate.

(1)

An application for grant of certificate shall be made to the Board in such form and shall contain such particulars as may be prescribed and shall be accompanied by a receipt evidencing the payment of the prescribed fee.

(2)

On receipt of such application, the Board shall :-

(a)

if the application is not in the prescribed form or does not contain any of the prescribed particulars, return the application to the applicant; or

(b)

if the application is in the prescribed form and contains the prescribed particulars, grant the certificate subject to such terms and conditions as may be determined by regulations.

13.

Cancellation, suspension; etc. of certificate.

(1)

The Board may cancel any certificate on any one or more of the following grounds, namely:-

(a)

that the holder of the certificate has violated any of the terms and conditions of the certificate; and

(b)

that in the opinion of the Central Government it is necessary in the interests of general public to cancel the certificate.

(2)

where the Board, for reasons to be recorded in writing is satisfied that pending consideration of the question of cancelling the certificate on any grounds mentioned in subsection (1), it is necessary so to do, the Board may by order in writing suspend the operation of the certificate for such period not exceeding forty-five days as may be specified in the order and require the holder of the certificate to show cause, within fifteen days from the date of receipt of such order, as to why the suspension of the certificate should not be extended till the determination of the question as to whether the registration should be cancelled.

(3)

No order of cancellation of registration under this section shall be made unless the person concerned has been given a reasonable opportunity of being heard in respect of the grounds for such cancellation.

14.

Appeal.

(1)

Any person aggrieved by an order made under section 13 may prefer an appeal to the Central Government within such period as may be prescribed.

(2)

No appeal shall be admitted if it is preferred after the expiry of the period prescribed therefor.

Provided that an appeal may be admitted after the expiry of the period prescribed therefor if the appellant satisfies the Central Government that he had sufficient cause for not preferring the appeal within the prescribed period.

(3)

Every appeal made under this section shall be made in such form and shall be accompanied by a copy of order appealed against and by such fees as may be prescribed.

(4)

The procedure for disposing of an appeal shall be such as may be prescribed.

Provided that before disposing of an appeal, the appellant shall be given a reasonable opportunity of being heard.

(5)

The Central Government may confirm, modify or reverse the order appealed against.

15.

Power to permit export without certificate.

- The Central Government may, if satisfied that it is necessary or expedient, so to do, in public interest, by notification in the Official Gazette and subject to such conditions, if any, as may be specified there in, permit any body or other agency to commence or carry on the business of export of spices without a certificate.

Chapter - V Control By The Central Government

16.

Power to control price and distribution of cardamom.

(1)

The Central Government may, by order notified in the Official Gazette, fix in respect of cardamom of any description specified therein-

(a)

the maximum price or the minimum price, or the maximum and minimum prices, which may be charged by a grower of cardamom or cardamom dealer, wholesale or retail, whether for the Indian market or for export; and

(b)

the maximum quantity which may in one transaction be sold to any person.

(2)

Without prejudice to the generality of the powers conferred by sub-section (1), any order made thereunder may provide-

(a)

for requiring persons engaged in the production, supply or distribution of, or trade and commerce in cardamom to maintain and produce for inspection such books, accounts and records relating to their business and to furnish such information relating thereto as may be specified in the order; and

(b)

for such other matters; including in particular the entering and search of premises, vehicles, vessels and aircraft, and seizure by a person authorised to make such search of cardamom in the respect of which such person has reason to believe that a contravention of the order has been, is being or is about to be committed.

17.

Power to prohibit or control import of Cardamom.

- The Central Government may, by order publish in the official Gazette, make provision for prohibiting, restricting or otherwise controlling the import of cardamom, either generally or in specified classes of cases.

18.

Power of the Central Government to issue directions.

(1)

Without prejudice to foregoing provisions of this Act, the Board shall, in the discharge of its functions and duties under this Act, be bound by such direction of questions of policy as the Central Government may give in writing to it from time to time;

Provided that the Board shall as far as practicable, be given an opportunity to express its views before any direction is given under this sub-section.

(2)

The decision of the Central Government whether a question is one of policy or not shall be final.

19.

Power of the Central Government to supersede the Board.

(1)

If at any time the Central Government is of opinion-

(a)

that on account of grave emergency, the Board is unable to discharge the functions and duties imposed on it by or under the provisions of this Act; or

(b)

that the Board has persistently made default in complying with any direction issued by the Central Government under this Act or in the discharge of the functions and duties imposed on it by or under the provisions of this Act and as a result of such default the financial position of the Board or the administration of the Board has deteriorated; or

(c)

that circumstances exist which render it necessary in the public interest so to do,

the Central Government may, by notification in the Official Gazette, supersede the Board for such period, not exceeding six months, as may be specified in that notification,

(2)

Upon the publication of a notification under sub-section (1) superseding the Board, -

(a)

all the members shall, as from the date of supersession vacate their offices as such;

(b)

all the powers, functions and duties which may, by or under the provisions of this Act, be exercised or discharged by or on behalf of the Board, shall until the Board, is reconstituted under sub-section (3), be exercised and discharged by such person or persons as the Central Government may direct; and

(c)

all property owned or controlled by the Board shall, until the Board is reconstituted under sub-section (3), vest in the Central Government.

(3)

On the expiration of the period of supersession specified in the notification issued under sub-section (1), the Central Government may reconstitute the Board by a fresh appointment and in such case any person or persons who vacated their offices under clause (a) of subsection (2), shall not be deemed disqualified for appointment.

Provided that the Central Government may, at any time, before the expiration of the period of supersession, take action under this subsection.

(4)

The Central Government shall cause a notification issued under subsection (1) and a full report of any action taken under this section and the circumstances leading to such action to be laid before each House of Parliament at the earliest.

Chapter - VI Finance, Accounts And Audit

20.

Grants and loans by the Central Government.

- The Central Government may, after due appropriation made by Parliament by law, in this behalf, made to the Board grants and loans of such sums of money as that Government may consider necessary.

21.

Board Fund.

(1)

There shall be constituted a fund to be called the Spices Board Fund and there shall be credited thereto-

(a)

any grants and loans made to the Board by the Central Government under section 20;

(b)

all fees levied and collected in respect of certificates granted under this Act; and,

(c)

all sums received by the Board from such other sources as may be decided upon by the Central Government.

(2)

The Fund shall be applied for meeting-

(a)

salary, allowances and other remuneration of the members, officers and other employees of the Board;

(b)

expenses of the Board in the discharge of its functions under section 7; and

(c)

expenses on objects and for purposes authorised by this Act.

22.

Budget.

- The Board shall prepare in such form and at such time each financial year, as may be prescribed, its budget for the next financial year, showing the estimated receipts and expenditure of the Board and forward the same to the Central Government.

23.

Annual Report.

- The Board shall prepare, in such form and at such time each financial year, as may be prescribed its annual report

giving a full account of its activities during the previous financial year and submit a copy thereof to the Central Government.

24.

Accounts and audit.

- The accounts of the Board shall be maintained and audited in such manner as may, in consultation with Comptroller and Auditor General of India, be prescribed and the Board shall furnish to the Central Government before such date, as may be prescribed, its audited copy of accounts together with the auditor's report thereon.

25.

Annual report and auditors' report to be laid before Parliament.

- The Central Government shall cause the annual report and auditor's report to be laid, as soon as may be after they are received, before each House of Parliament.

Chapter - VII Miscellaneous

26.

Penalty for making false returns.

- Any person who being required by or under this Act to furnish any return fails to furnish such return or furnishes a return containing any particulars which is false and which he knows to be false or does not believe to be true shall be punishable with fine which may extend to five hundred rupees.

27.

Penalties for obstructing an officer or member of the Board in the discharge of his duties and for failure to produce books and records.

- Any person who -

(a)

obstructs any member authorised by the Chairman in writing or any officer or other employee of the Board authorised by it in this behalf or any person authorised in this behalf by the Central Government or by the Board, in the exercise of any power conferred, or in the discharge of any duty imposed, on him by or under this Act; or

(b)

having control over or custody of any account book or other record; fails to produce such book or record when required to do so by or under this Act.

Shall be punishable with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

28.

Penalty for contravention of order relating to control of price, etc.

(1)

If any person contravenes any order made under section 16, he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both; and the property in respect of which the order has been contravened or such part thereof as the Court may deem fit, shall be forfeited to the Central Government.

(2)

Any person who attempt to contravene, abets the contravention of any order under section 16 shall be deemed to have contravened that order.

29.

Penalties for contravention of section 11 or any order made under section 17.

- If any person contravenes the provisions of section 11 or any order made under section 17 he shall, without prejudice to any confiscation or penalty to which he may be liable under the provisions of the Customs Act, 1962, be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

30.

Other penalties.

- Whoever contravenes or attempts to contravene or abets the contravention of the provisions of this Act or of any rules or regulations made there under other than the provisions, punishment for the contravention whereof has been provided for in section 26, 27, 28 and 29, shall be punishable with imprisonment which may extent to six months, or with fine

which may extend to one thousand rupees, or with both, and in the case of a continuing contravention with an additional fine which may extend to fifty rupees for every day during which such contravention continues after conviction for the first such contravention.

31.

Offences by companies.

(1)

Where an offence under this Act has been committed by a company, every person who at the time the offence was committed was in charge of, and was responsible to, the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly;

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation: - For the purpose of this section,

(a)

"company" means any body corporate and includes a firm or other association of individuals; and

(b)

"director", in relation to a firm, means a partner in the firm

32.

Provisions of Act

52 of 1962

to apply to export of spices and import of cardamom.

(a)

All spices to which section 11 of this Act applies, and

(b)

the cardamom to which any order under section 17 of this Act applies,

Shall be deemed to be goods of which the import or export has been prohibited or restricted under section 11 of the Customs Act, 1962, and all the provisions of that Act shall have effect accordingly.

33.

Previous sanction of the Central Government.

- No prosecution for any offence punishable under this Act shall be instituted except with the previous sanction of the Central Government.

34.

Delegation.

- The Board may, by general or special order in writing, delegate to the Chairman or any other member or to any officer of the Board, subject to such conditions and limitations if any, as may be specified in the order, such of its powers and functions under this Act (except the power under section 39) as it may deem necessary.

35.

Members, officers and employees of the Board to be public servants.

- All members, officers and other employees of the Board shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.

36.

Protection of action taken in good faith.

- No prosecution or other legal proceeding shall lie against the Government, or the Board or any committee appointed by

it, or any member of the Board or such committee, or any officer or employee of the Government or the Board or any other person authorised by the Government or the Board for anything which is in good faith done or intended to be done under this Act or the rules or regulations made thereunder.

37.

Power to enter.

- Subject to any rule made in the behalf, any person, generally or specially authorised by the Board in this behalf, may whenever it is necessary so to do, for any of the purposes of this Act, at all reasonable times, enter upon any land or premises and make any inspection or inquiry or do such other Act or thing as may be prescribed;

Provided that no such person shall enter any building or any enclosed courtyard or garden attached to a dwelling-house (unless with the consent of the occupier thereof) without previously giving such occupier at least twenty-four hours' notice in writing of his intention to do so.

38.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the purpose of this Act.

(2)

Without prejudice to the generality of the foregoing power such rules may provide for all or any of the following matters, namely:-

(a)

the number of members of the Board under sub-section (3) of section 3;

(b)

the term of office and other conditions of service of the members of the Board under sub-section (5) of section 3;

(c)

The powers and duties of the Chairman under sub-section (6) of section 3;

(d)

the powers and functions of the Vice-Chairman under subsection (7) of section 3;

(e)

the constitution of committees under section 5;

(f)

the terms and conditions for giving licences to manufacturers of spices for export under clause (viii) of sub-section (1) of section 7;

(g)

the form and manner in which and the time at which the registered owner may furnish returns to the Board under section 10;

(h)

the form of the application and the fees under sub-section (1) of section 12;

(i)

the period of limitation for appeal under sub-section (1) of section 14;

(j)

the form of appeal and the fees payable under sub-section (1) of section 14;

(k)

the procedure for disposal of appeal under sub-section (4) of section 14;

(l)

the form in which, and the time at which, the Board shall prepare its budget under section 22 and its annual report under section 23;

(m)

the manner in which the accounts of the Board shall be maintained and audited and date before which the audited copy of the accounts may be furnished to the Central Government under section 24;

(n)

the conditions and restrictions with respect to the exercise of the power to enter under section 37;

(o)

any other matter which is to be, or may be, prescribed or in respect of which provision is to be, or may be, made by rule.

39.

Power to make regulations.

(1)

The Board may, with the previous approval of the Central Government, by notification in the Official Gazette, make regulations consistent with this Act and the rules generally to carry out the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:-

(a)

the terms and conditions of service of the Secretary and other officers and employees of the Board under sub-section (2) of section 4; and

(b)

the terms and conditions under which the certificate may be granted under sub-section (2) of section 12.

40.

Rules and regulations to be laid before Parliament.

- Every rule and every regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive session aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation should not be made the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

41.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act the Central Government may, by order, publish in the Official Gazette, make such provisions not inconsistent with the provisions of this Act as may appear to be necessary for removing the difficulty;

Provided that no order shall be made under this section after the expiry of two years from the commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

42.

Repeal and savings.

(1)

Sections 3 to 33 of the Cardamom Act, 1965 are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the provisions of the said Act shall in so far as such thing or action is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the provisions of this Act as if the said provisions were in force when such thing was done or such action was taken and shall continue in force accordingly until superseded by anything done or any action taken under this Act.

The Schedule

[See Section 2 (n)]

1. Cardamom
2. Pepper
3. Chilly
4. Ginger
5. Turmeric
6. Coriander
7. Cumin

8. Fennel
9. Fenugreek
10. Celery
11. Aniseed
12. Bishopsweed
13. Caraway
14. Dill
15. Cinnamon
16. Cassia
17. Garlic
18. Curry leaf
19. Kokam
20. Mint
21. Mustard
22. Parsley
23. Pomegranate seed
24. Saffron
25. Vanilla
26. Tejpat
27. Pepper long
28. Star Anise
29. Sweet flag
30. Greater Galanga
31. Horse-raddish
32. Caper
33. Clove
34. Asafoetida
35. Cambodge
36. Hyssop
37. Juniper berry
38. Bay leaf
39. Lovage
40. Marjoram
41. Nutmeg
42. Mace
- 43.
- Basil
- 44.
- Poppy Seed
- 45.
- All-Spice
- 46.
- Rosemary
- 47.
- Sage
- 48.
- Savory
- 49.
- Thyme
- 50.
- Oregano

51.

Tarragon

52.

Tamarind In any form including curry powders, spice oil, oleoresins and other mixtures where spice content is predominant.

S. No. 27 to 52 added vide notification S. O. No. 3130 dated 8.11.1990.

Related AI tags, queries and research notes

Translation